

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401463	QUILLMAN VS BEATTY	MOTION TO SET ASIDE

Tentative Ruling:

The Court denies the Motion to Set Aside without prejudice as there is no evidence that Plaintiff's counsel was appropriately served with the Motion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2304863	CABANAS ALMAZAN VS AMERICAN HONDA MOTOR	MOTION TO STRIKE OR IN THE ALTERNATIVE, TAX COSTS BY AMERICAN HONDA MOTOR

Tentative Ruling:

The Court GRANTS, in part, Defendant's Motion to Strike or Tax Costs for the following items: Item 1 (Filing Fees): \$60.00 (anticipated attorney fees motion filing); Item 8(b) (Expert Fees): \$850.00 (cancellation and late notice charges); Item 13 (Other Costs – Travel): \$4,174.92 (lodging only); and Item 13 (Other Costs - Court Appearance Professionals): \$75.00, for a total of \$5,159.92. The Court DENIES as to all other challenged costs. Plaintiff is entitled to recover costs in the reduced amount of \$45,193.22 (\$50,353.14 – \$5,159.92).

Defendant challenges a total of \$43,791.04 in costs. Each category is addressed as follows:

a. Filing Fees (Item 1)

Plaintiff claims \$570.00 in filing and motion fees, including \$450.00 for the Complaint filing, \$60.00 for an Ex Parte to Continue Trial, and \$60.00 for an anticipated Motion for Attorney Fees. Defendant challenges the latter two amounts totaling \$120.00, arguing that these items lack documentation and that anticipated costs are not recoverable.

Filing fees are recoverable under CCP § 1033.5(a)(1), which provides that "[f]iling, motion, and jury fees" are allowable as costs. (CCP § 1033.5(a)(1).)

Ex Parte to Continue Trial (\$60.00). Plaintiff's opposition demonstrates the Ex Parte to Continue Trial was reasonably necessary because it resulted from Defendant's repeated cancellations of vehicle inspections that prevented expert depositions from going forward timely before the January 2, 2026 trial date. (Devabose Decl. ¶ 5, Ex. B.) Defendant's challenge is further undermined by the fact that Defendant was supposed